

LINE

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**IN RE THE MATTER OF THE EVELYN JANE ELM LIVING TRUST
PR25-00768**

Petition for Demand of Information and Accounting; to Remove Trustee; for Return of Trust Assets; and Instructions to Restrain the Trustee from Using Trust Assets to Defend Litigation [Cal. Prob. Code §§ 17200; 15642; 16060 et seq.]

Objection and Response of Dennis Elm, Trustee, For Demand of Information and Accounting; Removal of Trustee; Return of Trust Assets and Restraining Trustee from Using Trust Assets to Defend Litigation [Cal. Prob. Code, §§ 17200; 15642; 16060 et seq.]

PREGRANT ORDER

Continued on the court's own motion to Friday, July 17, 2026, at 9:00 a.m. in Department 22.

LINE

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**IN THE MATTER OF ESSIE MAE WEEKS
PR25-00028**

First Amended Petition to Compel Production of Trust Documents and Accounting

PREGRANT ORDER

This matter was continued from March 4, 2026 and May 6, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the amended petition which did not resolve the issues with the original petition and the Declaration filed March 9, 2026.

The court on its own motion continues this hearing to August 26, 2026 at 9:30 a.m. in Department 22. Pending the continued hearing the petitioner shall resolve the following issues:

1. There is no Proof of Service on file showing all those entitled to notice have received either the original petition or the amended petition per Probate Code section 17203. There is a Proof of Substituted Service but it is unclear whether the documents were served at a valid address for the respondents or the relationship of the person who received the documents to the respondents. The court notes that the trustees were represented by counsel in the original trust matter.
2. The Declaration filed March 9, 2026 states that because the petitioner believes that the scholarship fund was created using trust funds, the court should be able to review the trust documents and accounting. The declaration also appears to challenge the trust amendment which created the scholarship fund based on the trustor's possible health issues (page 2, lines 18-19). The petitioner should have brought her challenge or her